

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

GARY KONG,

Plaintiff,

X
Index No.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. GONZALEZ, SHIELD # 20794 and
PARTNER "JOHN DOE",

Defendants.
_____X

Plaintiff, GARY KONG, complaining of the defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. GONZALEZ, SHIELD # 20794 and PARTNER "JOHN DOE" herein, by and through his attorney Daniel Chu, Esq., alleges the following upon information and belief:

1. At all times herein mentioned, Plaintiff, GARY KONG, was and still is a resident of the County of Kings, State of New York.
2. At all times herein mentioned, and upon information and belief, defendant CITY OF NEW YORK was and is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times herein mentioned, the defendant, THE CITY OF NEW YORK, its agents, servants and employees operated, maintained, controlled the Police Department of the City of New York, including all the police officers thereof.
4. At all times herein mentioned, defendant P.O. GONZALEZ, SHIELD #20794, was and is a natural person who was employed by the New York City Police Department and was acting during the course of and in furtherance of his employment therewith.

5. At all times herein mentioned, defendant PARTNER "JOHN DOE" was and is a natural person who was employed by the New York City Police Department and was acting during the course of and in furtherance of his employment therewith.

6. That on or about July 8, 2016, a Notice of Claim was served on the aforementioned defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. GONZALEZ, SHIELD # 20794 and PARTNER "JOHN DOE", prior to the commencement of this action.

7. That on or about July 8, 2016, GARY KONG the plaintiff herein, duly presented in writing to the defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. GONZALEZ, SHIELD # 20794 and PARTNER "JOHN DOE", the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

8. That more than thirty (30) days have elapsed since the said Notice of Claim was served upon the defendants and said defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. GONZALEZ, SHIELD # 20794 and PARTNER "JOHN DOE", have failed and refused to make an adjustment of any claim herein set forth.

9. That all conditions precedent to the bringing of this action have been complied with.

10. A hearing was held on September 30, 2016 pursuant to Section 50-H of the General Municipal Law.

11. That this action was commenced within one year and ninety (90) days after the accrual of the cause of action herein.

12. That said occurrence and the result thereof were due solely and wholly by reason of the negligence, wanton disregard, carelessness and recklessness of the defendants, its agents, servants, employees, licensees, designees and/or representatives in ownership, maintenance, management, supervision, charge and control of the aforesaid entity and personnel.

13. That there was no culpable conduct on the part of the Plaintiff contributing thereto.

AS AND FOR FIRST CAUSE OF ACTION

14. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "13", with the same force and effect as if more fully and completely set forth at length herein.

15. That on or about June 18, 2016 at approximately 11:30 a.m., while the Plaintiff was lawfully inside his home at 159-14 102nd Street, Howard Beach, New York in the County of Kings and State of New York, defendants P.O. GONZALEZ, SHIELD # 20794 and PARTNER "JOHN DOE", without just cause or provocation and with a great force and violence, grabbed and placed Plaintiff in handcuffs, causing Plaintiff to sustained physical and emotional injuries.

16. That the defendants, acting as agents and on behalf of the defendants and within their scope of their employment, intentionally, negligently, willfully, maliciously and brutally assaulted Plaintiff GARY KONG, in that they had the real or apparent authority to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact in the Plaintiff, and defendants, in a hostile and/or offensive manner assaulted, touched, handcuffed and accosted the Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused severe injuries.

17. That by reason of the aforesaid assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury and was rendered sick, sore, lame and disable, sustained serious and permanent personal injuries the full extent of which are not yet known; pain and suffering; anxiety; nervousness; depression; loss of dignity, embarrassment,

humiliation, emotional distress; inability to sleep; inability to perform or attend to normal and routine daily activities; a loss of past and future income; was forced to expend sums out of pocket to pay for hospital and/or medical care and treatment and will be caused to expend sums for hospital and/or medical care and treatment for an indefinite period of time into the future the full amount of which is not currently known. and among other things, he suffered conscious pain and suffering and that he was otherwise damaged.

18. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "18", with the same force and effect as if more fully and completely set forth at length herein.

20. That the defendant, THE CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employee, the above named individuals, in that the said employees lack the experience, temperament and ability to be employed by the defendant; in that the defendant failed to exercise due care and caution in the hiring practices, and in particular, the defendants lacked the maturity, of said defendant employees when they hire them to be employees and, in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

21. That the defendant, THE CITY OF NEW YORK, failed to train and/or improperly trained its employees in recognizing probable cause sufficient to arrest or prosecute individual suspected of a crime.

22. That the aforesaid occurrence, to wit: the assault and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants or employees without any negligence on the part of the Plaintiff.

23. That by reason of the aforesaid assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury and was rendered sick, sore, lame and disable, sustained serious and permanent personal injuries the full extent of which are not yet known; pain and suffering; anxiety; nervousness; depression; loss of dignity, embarrassment, humiliation, emotional distress; inability to sleep; inability to perform or attend to normal and routine daily activities; a loss of past and future income; was forced to expend sums out of pocket to pay for hospital and/or medical care and treatment and will be caused to expend sums for hospital and/or medical care and treatment for an indefinite period of time into the future the full amount of which is not currently known. and among other things, he suffered conscious pain and suffering and that he was otherwise damaged.

24. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "24", with the same force and effect as if more fully and completely set forth at length herein.

26. That the defendant, their agents, servants and employees, in particular, the named defendants, P.O. GONZALEZ, SHIELD # 20794 and PARTNER "JOHN DOE", and impart upon them the knowledge of the proper circumstances under which an arrest and search may be made, to control their tempers and exercise the proper behavior and conduct as representative of their employers, in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

27. That the aforesaid occurrence, to wit: the assault and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants or employees without any negligence on the part of the Plaintiff.

28. That by reason of the aforesaid assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury and was rendered sick, sore, lame and disable, sustained serious and permanent personal injuries the full extent of which are not yet known; pain and suffering; anxiety; nervousness; depression; loss of dignity, embarrassment, humiliation, emotional distress; inability to sleep; inability to perform or attend to normal and routine daily activities; a loss of past and future income; was forced to expend sums out of pocket to pay for hospital and/or medical care and treatment and will be caused to expend sums for hospital and/or medical care and treatment for an indefinite period of time into the future the full amount of which is not currently known. and among other things, he suffered conscious pain and suffering and that he was otherwise damaged.

29. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "29", with the same force and effect as if more fully and completely set forth at length herein.

31. That the aforementioned defendants, their agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances in that they carelessly and recklessly used the threat of physical force and actually used physical force upon the Plaintiff thereat, and in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

32. That the aforesaid occurrence, to wit: the assault and the resulting injuries to mind and body to Plaintiff therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants or employees without any negligence on the part of the Plaintiff.

33. That by reason of the aforesaid assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury and was rendered sick, sore, lame and disable, sustained serious and permanent personal injuries the full extent of which are not yet known; pain and suffering; anxiety; nervousness; depression; loss of dignity, embarrassment, humiliation, emotional distress; inability to sleep; inability to perform or attend to normal and routine daily activities; a loss of past and future income; was forced to expend sums out of pocket to pay for hospital and/or medical care and treatment and will be caused to expend sums for hospital and/or medical care and treatment for an indefinite period of time into the future the full amount of which is not currently known. and among other things, he suffered conscious pain and suffering and that he was otherwise damaged.

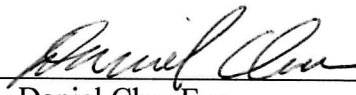
34. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

35. That by reason of the aforesaid, Plaintiff was caused to be falsely and unlawfully arrested, detained and imprisoned, suffered loss of liberty and civil rights as well as battered and assaulted, have his federal and state constitutional rights denied, in violation of his civil rights pursuant to U.S.C.A §§ 1981, 1983, 1985 in that the Plaintiff was deprived and denied his rights and privileges secured to the Plaintiff under the Constitution of the United States and the State of New York.

WHEREFORE, Plaintiff GARY KONG demands judgment against defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. GONZALEZ, SHIELD # 20794 and PARTNER "JOHN DOE", in a sum in excess of the jurisdiction of all lower courts which might otherwise have jurisdiction for each cause of action alleged, together with the costs and disbursements of this action.

Dated: Flushing, New York
April 20, 2017

Yours, etc.

By: 
Daniel Chu, Esq.

Attorney for Plaintiff
GARY KONG
150-03 Northern Blvd. 2nd Flr.
Flushing, NY 11354
(917) 608-1696

To: The City of New York
c/o Comptroller of the City of New York
Municipal Building
New York, New York 10007

New York City Police Department
c/o Corporation Counsel
100 Church Street
New York, New York 10007

ATTORNEY'S VERIFICATION

Daniel Chu, an attorney admitted to practice in law in the Courts of the State of New York affirms under penalties of perjury as follows:

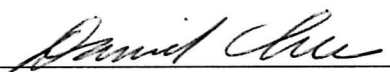
I am the attorney for the plaintiff, GARY KONG, in the within action and I am fully familiar with the facts and circumstances herein.

I have read the foregoing Verified Complaint and know the contents to be true to my own knowledge except as to matters therein alleged on information and belief, and as to those matters I believe them to be true.

The sources of my information are my conversations with Plaintiff and records and information contained in the files in my office.

The reason for this verification is made by me and not by Plaintiff is that Plaintiff does not reside within the County of Queens which is the county where I maintain my office.

Dated: Flushing, New York
April 20, 2017



Daniel Chu